

**UNITED STATES DISTRICT COURT
FOR THE DISTRICT OF MINNESOTA**

JOSEPH KIRCHNER,
Plaintiff,

v.
KEITH ELLISON, in his official
capacity as Attorney General of
the State of Minnesota,
Defendant.

Case No. 26-CV-2594 (LMP/DJF)

**PLAINTIFF'S MEMORANDUM OF
LAW IN OPPOSITION TO
DEFENDANT'S MOTION TO DISMISS**

INTRODUCTION

Defendant moved to dismiss on the ground that the Office of the Attorney General never possessed the authority its February 26, 2026 letter disclaimed. Defendant's own memorandum abandons that ground. The memorandum concedes that the letter "does not disavow the AGO's jurisdiction to investigate violations of PCFA" (Def. Mem. 8), and that "the AGO does investigate and prosecute Medicaid fraud" (*id.*). It identifies no statute — none — that repeals, withholds, or limits the investigative authority that Minnesota Statutes Section 8.31, Subdivision 1 and Section 8.32, Subdivision 2(1) confer in mandatory terms. The single dispositive question this case presents — *what legislative act makes the disclaimer a correct statement of Minnesota law?* — went unanswered in the denial letter, on the Attorney General's website, in the prior litigation, in the parties' June 2026 conferral, and now in this motion. The premise of the February 26 letter has not been defended because it cannot be.

What remains is a motion that (1) invokes a doctrine against "duplicative" litigation that, by its own terms, applies only to simultaneously pending actions, while in

the same breath asserting that the first action was a with-prejudice merits judgment entitled to preclusive effect — two theories that cannot both be true; (2) denies standing without engaging the concrete injury the Complaint pleads element by element; (3) misstates the relief sought to invoke sovereign immunity, when the Complaint seeks prospective relief against an ongoing constitutional violation; and (4) attacks the federal claims on the pleadings while conceding the facts that establish them. The motion also enumerates Federal Rule of Civil Procedure 12(b)(7) (failure to join a required party) and Rule 8(a)(2) as grounds (ECF Doc. 9), but the memorandum argues neither — both are abandoned: the joinder ground is foreclosed by Defendant's own prior correspondence, and the Rule 8(a)(2) ground is nowhere applied to a Complaint whose narrowing cured the only Rule 8 defect any court has identified.

The motion should be denied. The premise underlying Defendant's preclusion arguments has been overtaken by events: on June 25, 2026, the Eighth Circuit summarily affirmed the *Kirchner I* dismissal under 8th Circuit Rule 47A(a), in a judgment without opinion that reached no claim and made no merits finding. That disposition forecloses Defendant's duplicative-litigation theory — once the mandate issues, no action will be pending anywhere — while supplying nothing the doctrine of claim preclusion requires, because affirming a Rule 8(a)(2) dismissal that decided no claim does not convert it into an adjudication on the merits. Dismissal with prejudice is therefore unavailable; if the Court entertains any preclusion concern at all, the most it permits is dismissal without prejudice with leave to amend.

FACTUAL BACKGROUND

The Complaint alleges the following, which must be accepted as true on this motion.

On February 10, 2026, Plaintiff hand-delivered a criminal referral to the Office of the Attorney General documenting consumer fraud, computer crimes, and corporate misconduct, supported by approximately 285 exhibits comprising roughly 63,000 forensic files. (Compl. ¶ 16; Ex. A.) On February 26, 2026, Defendant's office denied the referral by letter stating that "the Minnesota Legislature . . . did not delegate any such authority to this Office, nor did it delegate the authority to investigate criminal matters to this Office." (Compl. ¶ 19; Ex. A.) The Attorney General's official website maintains a substantively identical disclaimer, which has persisted across multiple administrations and remains operative. (Compl. ¶¶ 22–26; Ex. B.)

The disclaimer contradicts the plain text of Chapter 8. Section 8.31, Subdivision 1 provides that the Attorney General "shall investigate violations of the law of this state respecting unfair, discriminatory, and other unlawful practices in business, commerce, or trade, and specifically, but not exclusively . . . the Prevention of Consumer Fraud Act (sections 325F.68 to 325F.70)." (Compl. ¶¶ 2, 35.) Section 8.32, Subdivision 2(1) commands that the Attorney General "shall . . . enforce the provisions of law relating to consumer fraud." (Compl. ¶ 37.) Under Minnesota law, "shall" is mandatory. Minn. Stat. § 645.44, Subd. 16. Six days after the denial, Defendant testified before the United States House Committee on Oversight and Government Reform that his office prosecutes fraud "every single day." (Compl. ¶¶ 27–31; Ex. C.) A 50-state survey identified Minnesota as

the only state whose Attorney General affirmatively disclaims criminal-investigation authority its own statutes grant. (Compl. ¶¶ 48–51; Ex. B.)

Plaintiff previously raised these Chapter 8 claims within a broader pleading in *Kirchner v. Ellison*, No. 0:26-cv-00726-PJS (D. Minn.) ("*Kirchner I*"). On March 30, 2026, the court dismissed that pleading under Rule 8(a)(2) for length, without reaching the merits of any claim, the statutory analysis, or Plaintiff's standing. (Compl. ¶ 4.) The order did not specify whether dismissal was with or without prejudice — a point Defendant concedes. (Def. Mem. 6.) Plaintiff appealed and filed this narrowed action on May 12, 2026, presenting only claims arising from Defendant's own conduct. (Compl. ¶¶ 5–6.) On June 25, 2026, while this action was pending, the Eighth Circuit summarily affirmed the *Kirchner I* dismissal under 8th Circuit Rule 47A(a); the mandate has not yet issued.

The parties conferred. On June 10, 2026, Defendant's counsel demanded withdrawal. On June 12, 2026, Plaintiff declined in a substantive response that posed the dispositive single-statute question, offered voluntary dismissal under Rule 41(a) if Defendant identified any repealing authority, and requested that any Local Rule 7.1 statement attach the exchange in full. (Kirchner Decl. ¶¶ 8–9; Ex. 2.)¹ Defendant filed this motion on June 17, 2026, identifying no such authority.

¹ Defendant's Meet and Confer Statement (ECF Doc. 12) is two sentences long; it omits Plaintiff's substantive position and dismissal offer. Defendant followed the same practice in *Kirchner I*, answering Plaintiff's substantive March 6, 2026 statutory response only

STANDARD OF REVIEW

On a facial challenge under Rule 12(b)(1), "the factual allegations concerning jurisdiction are presumed to be true." *Titus v. Sullivan*, 4 F.3d 590, 593 (8th Cir. 1993) (cited by Def. Mem. 7). On a Rule 12(b)(6) motion, the Court accepts all well-pleaded factual allegations as true and draws all reasonable inferences in Plaintiff's favor. *Ashcroft v. Iqbal*, 556 U.S. 662, 678 (2009). A pro se complaint "must be liberally construed," *Topchian v. JPMorgan Chase Bank*, 760 F.3d 843, 849 (8th Cir. 2014), and is held "to less stringent standards than formal pleadings drafted by lawyers," *Haines v. Kerner*, 404 U.S. 519, 520 (1972) (per curiam); accord *Stone v. Harry*, 364 F.3d 912, 914 (8th Cir. 2004) ("pro se complaints are to be construed liberally") (cited by Def. Mem. 4). Dismissal for failure to comply with Rule 8 ordinarily "should be with leave to amend." *Michaelis v. Nebraska State Bar Ass'n*, 717 F.2d 437, 439 (8th Cir. 1983) (per curiam).

ARGUMENT

I. Neither the Duplicative-Litigation Rule nor Claim Preclusion Bars This Action, and Dismissal With Prejudice is Foreclosed.

Defendant's lead argument is that this action is "duplicative" of *Kirchner I*. (Def. Mem. 4–7.) The argument fails on its own authorities, rests on two mutually exclusive

that "the parties . . . do not agree on the disposition of the case." (Kirchner Decl. Ex. 1.)

The complete exchanges are submitted with Plaintiff's accompanying declaration so that the conferral record is before the Court.

theories, and seeks a remedy the doctrine does not authorize.² The Eighth Circuit's June 25, 2026 summary affirmance only deepens the defect: it removes the "still pending" predicate on which the duplicative-litigation rule depends, without supplying the merits adjudication that claim preclusion requires.

A. The Doctrine Requires Two Simultaneously Pending Actions; Kirchner I is Not Pending in Any District Court.

The rule against duplicative litigation addresses a plaintiff who "attempts to litigate 'the same issue at the same time in more than one federal court.'" *Ritchie Capital Mgmt., L.L.C. v. Jeffries*, 849 F. Supp. 2d 881, 888 (D. Minn. 2012) (quoting *Blakley v. Schlumberger Tech. Corp.*, 648 F.3d 921, 932 (8th Cir. 2011)) (emphasis added) (cited by Def. Mem. 5). It bars "the pursuit of 'multiple federal suits against the same party involving the same controversy at the same time.'" *Olson v. Brott*, No. 09-CV-790-JNE-JJG, 2009 WL 4912135, at *6 (D. Minn. Dec. 11, 2009) (quoting *Missouri ex rel. Nixon v. Prudential Health Care Plan, Inc.*, 259 F.3d 949, 954 (8th Cir. 2001)) (emphasis added) (cited by Def. Mem. 5). And the very sentence Defendant quotes from *Olson* conditions the rule on the first action's pre-judgment posture: "If a judgment has not been entered in the first action, the plaintiff will be limited by the rule prohibiting the pursuit

² Defendant's introduction also invokes "claim-splitting" (Def. Mem. 1) but never develops it. The label changes nothing: on any formulation the rule requires either a first action still pending (*infra* §§ I.A–B) or a final merits judgment (*infra* § I.C). Defendant has neither.

of 'multiple federal suits against the same party involving the same controversy at the same time.'" (Def. Mem. 5 (quoting *Olson*, 2009 WL 4912135, at *6).) Judgment was entered in *Kirchner I* on March 31, 2026. (*Kirchner I*, ECF Doc. 30.)

Kirchner I is not being litigated "at the same time" as this action in "more than one federal court." It was dismissed on March 30, 2026 and has been closed at the district level ever since; no claim is being prosecuted there. The Eighth Circuit summarily affirmed that dismissal on June 25, 2026, and the mandate will issue in the ordinary course. An appeal from a dismissal is not a parallel prosecution of the same claims in a second trial court; it is appellate review of the order closing the first. There is, and has been, exactly one trial-court action presenting these claims: this one. The predicate for the doctrine Defendant invokes — "the same issue at the same time in more than one federal court" — is therefore absent, and it will be unmistakably absent by the time this motion is ripe for decision, when the mandate has issued and *Kirchner I* is conclusively closed.

Missouri ex rel. Nixon itself — the source of the rule Defendant quotes — applied the principle in precisely this posture, and against precisely the opposite target. There, the State's first action was dismissed without prejudice for pleading defects; the State cured them "as suggested by the district court's dismissal order," "filed a new action" whose complaint "ameliorated the apparent defects in the initial complaint," and simultaneously appealed. 259 F.3d at 952. The Eighth Circuit applied the anti-duplication principle to the *appeal*, not the refiled action — "the State's appeal is wholly duplicative of its pending second action," *id.* at 950–51 — because "the action pending in

district court would resolve the parties' dispute." *Id.* at 954. Far from condemning the refiling, the court observed that the State "did not simply regurgitate its first complaint when it filed a second action" but "apparently fixed the alleged defects." *Id.* at 954–55. And the doctrine's stated premise is that declining jurisdiction "does not deprive the parties of a forum in which to air their grievances." *Id.* at 953. That is this case: a without-prejudice Rule 8 dismissal, a narrowed refiling that cures the identified defect, and an appellate proceeding now concluded. This action is the parties' one remaining forum. Dismissing it would not prune duplication; it would extinguish the controversy — the opposite of the doctrine's office.

Parker v. Matthews, 71 F. App'x 613 (8th Cir. 2003) (per curiam) (unpublished), which Defendant offers by analogy (Def. Mem. 7), illustrates why the doctrine has no application here. In *Parker*, the plaintiff had filed two simultaneous district-court actions. In a single opinion, the Eighth Circuit revived the first — reversing its preservice dismissal — and affirmed the dismissal of the second as "essentially repetitive of the first," while observing that the pleading "may be amended on remand if appropriate" in the case it had just revived. *Id.* at 614. Dismissal of the duplicate was costless because the claims lived on in the surviving first action. The posture here is the mirror image: *Kirchner I* is not a surviving vessel for these claims — it was dismissed on pleading form, judgment entered, and the judgment summarily affirmed — so dismissing this action would not avoid duplication of anything; it would extinguish claims no court has ever adjudicated. *Parker's* own rationale forecloses that result.

B. Defendant's Two Theories are Mutually Exclusive.

Defendant argues, in the alternative, both that *Kirchner I* was a with-prejudice merits dismissal entitled to preclusive effect (Def. Mem. 5–6) and that, "even if the *Kirchner I* dismissal does not constitute an adjudication on the merits," "dismissal is nonetheless proper" under the rule against duplicative litigation. (Def. Mem. 6 (citing *Kezhaya v. City of Belle Plaine*, 78 F.4th 1045, 1050 (8th Cir. 2023)).) These positions cannot both be right, as Defendant's own formulation shows: "Unlike *res judicata*, which requires an adjudication on the merits, the rule against duplicative litigation permits dismissal even when the first action is still pending." (Def. Mem. 6.) *Kezhaya* states the same rule in terms of a first action that "remains pending." 78 F.4th at 1050. If *Kirchner I* is concluded, the duplicative-litigation rule does not reach it; if it is still pending, there is no merits judgment to preclude anything. Defendant cannot occupy both grounds at once. The June 25 affirmance does not rescue the motion from this dilemma; it sharpens it. Affirmance removes the "still pending" status on which the duplicative-litigation leg depends, leaving Defendant only the claim-preclusion leg — which fails because, as shown next, no claim was ever adjudicated on the merits.

Even the test Defendant proposes betrays the same borrowing: the same-parties, same-nucleus factors he offers (Def. Mem. 6) come from *Lane v. Peterson*, a *res judicata* decision whose rule states its own predicate — "a valid and final judgment rendered in an action" that "extinguishes the plaintiff's claim." 899 F.2d 737, 742 (8th Cir. 1990) (quoting Restatement (Second) of Judgments). Borrowing *res judicata*'s factors while

omitting its final-judgment element does not create a dismissal power the doctrine itself withholds.

C. No Claim Was Adjudicated on the Merits, and the Summary Affirmance Did Not Change That.

A Rule 8(a)(2) dismissal adjudicates the form of a pleading, not the merits of a claim. The *Kirchner I* order reached no count, no statutory provision, and no element of standing, and Defendant concedes it "did not say . . . whether the dismissal was with prejudice." (Def. Mem. 6.) In the Eighth Circuit, dismissal for failure to comply with Rule 8 ordinarily "should be with leave to amend" — that is, without prejudice — and dismissal with prejudice is justified only where the plaintiff "has persisted in violating Rule 8." *Michaelis*, 717 F.2d at 439 (citing *Koll v. Wayzata State Bank*, 397 F.2d 124, 127 (8th Cir. 1968), and *Micklus v. Greer*, 705 F.2d 314, 317 n.3 (8th Cir. 1983)); accord Def. Mem. 5–6 (acknowledging both propositions on the same authorities). Persistence, as *Michaelis* itself illustrates, means renewed violation after a court has spoken: the *Michaelis* plaintiff refiled substantially similar prolix pleadings after a district-court order had dismissed his initial complaint for Rule 8 noncompliance, without prejudice and with leave to amend. See 717 F.2d at 438–39. Nothing of the kind occurred in *Kirchner I*. No court order had identified any Rule 8 defect before the dismissal itself; the only prior Rule 8 objection came from Defendant's own motion; and the amended pleading was a first amendment filed as of right — as the dismissal order itself acknowledged, citing Rule 15(a)(1)(B). The dismissal is therefore properly treated as without prejudice, and it bars nothing.

Semtek International Inc. v. Lockheed Martin Corp., 531 U.S. 497 (2001), confirms the point and supplies the governing standard. There, the Supreme Court explained that "[t]he primary meaning of 'dismissal without prejudice' . . . is dismissal without barring the plaintiff from returning later, to the same court, with the same underlying claim," and that its "primary meaning relates to the dismissing court itself." *Id.* at 505. A without-prejudice dismissal thus imposes no bar to refile in the same court; only a dismissal that in fact operates as an "adjudication upon the merits" does. *Id.* at 505–06. And the claim-preclusive effect of a federal court's dismissal is governed by federal common law. *Id.* at 507–08. Because the *Kirchner I* dismissal was without prejudice, *see Michaelis*, 717 F.2d at 439, and adjudicated no claim, it is not an "adjudication upon the merits."

Defendant's only claim-specific evidence of a merits adjudication defeats his own theory. To show that the *Kirchner I* order "unequivocally found Kirchner's claims to be meritless," Defendant points to its remark that Plaintiff "obviously lacks standing" to seek virtually all of the relief requested. (Def. Mem. 6.) But standing is jurisdictional — Defendant himself raises it under Rule 12(b)(1) (ECF Doc. 9; Def. Mem. 7) — and jurisdiction must "be established as a threshold matter." *Steel Co. v. Citizens for a Better Environment*, 523 U.S. 83, 94 (1998). Rule 41(b) accordingly excepts a dismissal "for lack of jurisdiction" from those that "operate[] as an adjudication on the merits." Fed. R. Civ. P. 41(b). The standing remark therefore cannot carry the weight Defendant assigns it: if it had dispositive force, the dismissal was jurisdictional and precludes nothing; if it did not — an unanalyzed observation about a superseded pleading — the dismissal rests

entirely on Rule 8 form, and *Michaelis* controls. On neither reading does claim preclusion attach.

Ellis v. Nike USA, Inc., 158 F.4th 932 (8th Cir. 2025), which Defendant cites alongside that passage (Def. Mem. 6), confirms the governing framework — and forecloses Defendant's use of it. *Ellis* applies the "presumption that a dismissal under Rule 12(b)(6) is a judgment on the merits made with prejudice" to dismissals falling within Rule 41(b)'s second sentence, while "the standard in *Clayton* applies when the plaintiff 'fails to prosecute or to comply with these rules or a court order,' the first sentence of Rule 41(b)" — the framework under which dismissal with prejudice is a sanction that must be justified. 158 F.4th at 936 (quoting *Orr v. Clements*, 688 F.3d 463, 465 (8th Cir. 2012), and discussing *Clayton v. White Hall School District*, 778 F.2d 457, 460 (8th Cir. 1985)). And *Ellis* classifies *Michaelis* on the first-sentence side: "affirming dismissal with prejudice for 'persistence in refusing to conform his pleadings to the requirements of Rule 8.'" *Id.* (quoting *Michaelis*, 717 F.2d at 439). A Rule 8(a)(2) dismissal for pleading form is a failure-to-comply dismissal, not a Rule 12(b)(6) merits adjudication; the *Ellis* presumption never attaches; and the persistence *Michaelis* requires never occurred — the amended pleading was dismissed sua sponte, before any motion had been directed at it. (Def. Mem. 2.)

The Eighth Circuit's June 25, 2026 summary affirmance does not alter that conclusion. The judgment reads in its entirety: "This court has reviewed the original file of the United States District Court. It is ordered by the court that the judgment of the district court is summarily affirmed. See Eighth Circuit Rule 47A(a)." Review of a file is

not adjudication of a claim: the affirmance names no count, states no reasoning, and affirms "the judgment of the district court" as entered — a Rule 8(a)(2) dismissal for length that reached no claim and carried no prejudice designation. Affirming a non-merits dismissal does not convert it into a merits adjudication, and it supplies none of the elements claim preclusion demands. The preclusive effect of the *Kirchner I* judgment is for this Court to determine in the first instance under *Semtek*, and the determination is straightforward: the sole matter actually decided in *Kirchner I* — the prolixity of the 120-page pleading filed there — has no bearing on the narrowed Complaint now before this Court.

D. The Duplicative-Litigation Doctrine Never Authorizes Dismissal With Prejudice.

Even if a duplication concern existed, the remedy Defendant requests would not follow from it. The doctrine derives from the principle that courts should "avoid duplicative litigation" as a matter of "wise judicial administration." *Colorado River Water Conservation Dist. v. United States*, 424 U.S. 800, 817 (1976) (cited by Def. Mem. 4). Where it applies, its remedy is deference — a stay or a dismissal without prejudice — not a merits-preclusive dismissal with prejudice. Defendant nonetheless asks this Court to dismiss with prejudice (ECF Doc. 13), which would manufacture a with-prejudice adjudication of claims no court has decided. The doctrine supplies no warrant for that result. If any disposition short of denial is warranted, the proportional course is dismissal without prejudice with leave to amend — not dismissal with prejudice.

E. This Action is the Cure Defendant's Own Stated Position Invited.

Kirchner I was dismissed as seeking "wide-ranging and disparate" relief. This Complaint presents only the narrow Chapter 8 claims directed at Defendant's own conduct — the February 26 letter, the website disclaimer, and the selective exercise of Chapter 8 authority. No federal party is required and no relief concerning any federal actor is sought. (Compl. ¶¶ 5–6.)

Defendant's assertion that "Kirchner acknowledges that the Complaint is duplicative of *Kirchner I*" (Def. Mem. 5, citing Compl. pp. 5–6) misreads the pleading. Paragraphs 4 through 6 of the Complaint disclose the prior action and explain why preclusion does not attach — the opposite of an acknowledgment. Candor about related litigation is not a concession of duplicativeness.

That narrowing is the precise cure Defendant's own meet-and-confer position invited. On March 6, 2026, before moving to dismiss *Kirchner I*, Defendant's counsel wrote that the Attorney General would seek dismissal for "failure to state a claim, lack of jurisdiction, and failure to join the federal government as an essential party," because "your allegations primarily concern the actions of the federal government and do not implicate AG Ellison." (Kirchner Decl. Ex. 1.) Plaintiff removed the federal allegations and federal parties; this Complaint implicates only Defendant. Yet Defendant re-listed failure to join a required party under Rule 12(b)(7) in his notice of motion (ECF Doc. 9) — without arguing it anywhere in his memorandum — and now contends that the Ellison-only Complaint is improperly "duplicative" of the broader pleading it was filed to

replace. Defendant cannot fault the prior pleading for reaching beyond his own conduct and then move to dismiss the complaint that confines itself to exactly that.

II. Plaintiff Has Article III Standing.

To establish standing, a plaintiff must show injury in fact, causation, and redressability. *Lujan v. Defenders of Wildlife*, 504 U.S. 555, 560–61 (1992). The Complaint pleads each element. (Compl. ¶ 13.)

A. Injury in Fact.

Plaintiff's injury is the denial of his criminal referral through a false statement of law and the resulting foreclosure and chilling of his right to petition. This is not a generalized grievance; it is a specific denial of a specific referral by a specific official through a specific false statement. Government action that chills or penalizes the exercise of First Amendment rights is a cognizable injury. *Susan B. Anthony List v. Driehaus*, 573 U.S. 149, 157–64 (2014).

Defendant's contention that there was "no misstatement of law" because the Prevention of Consumer Fraud Act "is not a criminal statute" (Def. Mem. 8) fails three times over. First, the referral was not limited to the PCFA; Defendant's own memorandum recites that Plaintiff alleged "computer crimes, trade secret theft, AI child safety endangerment, and copyright violations" (Def. Mem. 2) — and computer crimes are codified in the Minnesota Criminal Code, Minn. Stat. § 609.87 et seq. Second, the PCFA range that Section 8.31 commands the Attorney General to investigate itself contains criminal provisions: Minn. Stat. § 325F.69, Subd. 2(6) defines specified

practices as gross misdemeanors. (Compl. ¶ 44.) Third, the February 26 letter did not disclaim only prosecution; it categorically disclaimed "the authority to investigate criminal matters to this Office" — a statement Section 8.31's mandatory "shall investigate" contradicts on its face.

Beyond the referral's criminal content, the categorical disclaimer is false on the face of the statutes the Attorney General administers. Section 8.31, Subdivision 2 empowers the Attorney General not only to investigate but "to take such steps as are necessary to cause the arrest and prosecution" of persons violating the enumerated statutes — criminal process, not civil. (Compl. ¶ 36.) Section 8.16 authorizes the Attorney General to subpoena the records of telephone companies and Internet service providers when "relevant to an ongoing legitimate law enforcement investigation," enforceable through "civil or criminal contempt." Minn. Stat. § 8.16, Subds. 1, 6.

And in 2025 the Legislature confirmed the point in the organic chapter of the very bureau to which criminal investigation is said to belong. Minnesota Statutes Section 299C.061 — the statute creating the Bureau of Criminal Apprehension's Financial Crimes and Fraud Section — legislates an operative role for the Attorney General "acting in a civil or criminal law enforcement capacity": Subdivision 4(b) gives him discretion, in that capacity, to refer suspected fraud to the new Section; Subdivision 4(c) provides that "this section has no effect on the authority of the attorney general to investigate and enforce violations or suspected violations of Minnesota civil or criminal law"; and Subdivision 7 exempts "information obtained by the attorney general when acting in a civil or criminal law enforcement capacity" from its reporting mandate. (Compl. ¶¶ 46–

47; Ex. E-10, ECF Doc. 3-1 at 39–40.) A savings clause preserves only what exists. The Legislature does not legislate discretion for an Attorney General "acting in a . . . criminal law enforcement capacity" if no such capacity exists. On Defendant's reading, all three provisions — enacted before the February 26 letter — do nothing. Minnesota law forbids that construction: "Every law shall be construed, if possible, to give effect to all its provisions." Minn. Stat. § 645.16. A categorical disclaimer of "the authority to investigate criminal matters" cannot be reconciled with statutes that grant the Attorney General arrest-and-prosecution authority, law-enforcement subpoena power over the very class of entities the referral concerned, and a legislatively recognized "criminal law enforcement capacity."³

The very form of the disclaimer forecloses the citizen it addresses. The disclaimer's assertion that the Legislature "did not delegate" is a universal negative asserted over the whole of Minnesota legislation — an assertion no citation can support and a single counterexample refutes. A positive assertion of exclusion would have

³ The investigative and prosecutorial authority Chapter 8 confers is neither recent nor of doubtful vintage. It traces by unbroken statutory lineage to Laws of Minnesota 1905, Chapter 227, "An act relating to the duties and powers of the attorney general and his assistants" — whose Section 6 expressly fixed the compensation of attorneys "employed by the attorney general to assist in criminal prosecutions" — and has been amended, recodified, and reaffirmed across the intervening decades without repeal. (Ex. E; Compl. ¶¶ 33–34.)

invited the obvious demand: cite the statute. Minnesota law shows what express exclusion looks like when the Legislature intends it, *see infra* § II.B (discussing Minn. Stat. § 388.051, Subd. 2(a)); the letter cites nothing because there is nothing to cite. Plaintiff made the demand anyway: his conferral response asked Defendant to identify "the statute, session law, or other legislative act" that makes the disclaimer correct, because a citizen denied on that stated ground "is entitled to the citation supporting that ground, freely provided, at the time of denial." (Kirchner Decl. Ex. 2.) None came. What remains is not prosecutorial discretion over a referral; it is discretion deployed to decline to examine the statutes the officer himself administers — each of which, §§ 8.31, 8.32, and 299C.061, refutes the universal negative on its own.

B. The Complaint Pleads Investigation, Which is Mandatory and Requires No County Request.

Defendant conflates investigation with prosecution. (Def. Mem. 8.) The referral sought investigation under Section 8.31, which is mandatory ("shall investigate") and requires no request from any county attorney. (Compl. ¶¶ 35, 43.) Defendant's contrary characterization — that the Complaint describes a referral "requesting a criminal prosecution" (Def. Mem. 3, citing Compl. pp. 1, 9) — cites pages that say no such thing: they describe a "criminal referral," and the Complaint states expressly that the referral "requested investigation under Section 8.31." (Compl. ¶¶ 1, 16, 43.) Section 8.01's "upon request" pathways concern the Attorney General's *appearance and prosecution* in court; they do not condition the independent investigative duty Section 8.31 imposes. (Compl. ¶¶ 38, 43.) And the second statute Defendant cites for his county-consent theory, Minn.

Stat. § 388.12 (Def. Mem. 8), does not concern the Attorney General at all: it authorizes a district judge to appoint an attorney "to act as, or in the place of, or to assist the county attorney" at a term of court. Defendant's reliance on the county-attorney structure thus addresses a duty Plaintiff did not invoke — through statutes that do not say what he claims.

And the Legislature knows how to make county-attorney authority exclusive when it intends to: Section 388.051, Subdivision 2(a) provides that in six named counties "only the county attorney shall prosecute" specified offenses. Minn. Stat. § 388.051, Subd. 2(a). No such word appears in any statute Defendant cites.

Defendant's county-consent account also collides with his own sworn testimony as pleaded. Six days after the denial letter, Defendant told Congress that "[t]he only kind of criminal case we can prosecute all on our own is Medicaid fraud." (Compl. ¶ 28; Ex. C.) His memorandum now tells this Court the opposite — that Medicaid-fraud cases "are prosecuted via referrals and consent agreements with county attorneys." (Def. Mem. 8.) The Court need not resolve which of Defendant's statements is accurate: on this facial motion the pleaded testimony is taken as true, and the memorandum's contrary account — offered without a declaration and resting on a state-court file number outside the pleadings — cannot be considered. On either version, a categorical disclaimer of "the authority to investigate criminal matters" remains false.

C. Causation and Redressability.

The injury is directly traceable to the February 26 letter, issued on official letterhead by the official who received and denied the referral and who continues to disclaim the authority. (Compl. ¶¶ 11, 19–20.) That is the most direct causal connection possible. The injury is redressable by relief available against this Defendant alone: a determination that the disclaimer was false, correction of the ongoing false statement on the website, and adjudication of the petition free of the false predicate. (Compl. ¶¶ 13, 91–99.)

Defendant's argument that Plaintiff is not "without redress" because the FBI or a county attorney could act (Def. Mem. 8–9) conflates injury with redressability and ignores the pleaded facts: the FBI disconnected Plaintiff's calls twelve times (Compl. ¶¶ 17, 20), and the county-attorney pathway is one Defendant himself directs — when the Attorney General requests, "it shall be the duty of any county attorney of the state to appear within the county and act." Minn. Stat. § 8.06. The Complaint pleads the same structural point — authority flows from the Attorney General to county attorneys, not the reverse. (Compl. ¶¶ 24, 39; Ex. B.) The private civil action Defendant invokes (Def. Mem. 9, 12, citing Minn. Stat. § 8.31, Subd. 3a) fares no better: a private consumer-fraud remedy is relief by a different actor for a different injury — it neither investigates crime nor answers a petition. The redressability inquiry asks whether *this* Court can redress the injury pleaded here — the foreclosure of Plaintiff's petition through a false statement of law — by relief against *this* Defendant, and it can.

D. Bond Confirms Standing, and the "virtually all" Qualifier Conceded a Remainder.

Bond v. United States, 564 U.S. 211, 221–22 (2011), confirms that an individual has standing to challenge government action exceeding statutory and constitutional limits. The *Kirchner I* order's statement that Plaintiff "obviously lacks standing to seek virtually all of the relief he requests" was made without analysis as to a superseded, far broader pleading; "virtually all" is not "all," and the refiled Complaint presents the conceded remainder. That unanalyzed remark is not a holding as to this Complaint.

E. The Mandatory-Duty Pleading Defeats Defendant's Discretion Argument.

Defendant invokes *Parkhurst v. Tabor*, 569 F.3d 861, 867 (8th Cir. 2009), for the proposition that investigation and prosecution are "discretionary" and cannot be compelled. (Def. Mem. 9.) That misapprehends the claim. Plaintiff does not seek to compel a particular prosecutorial *outcome*; the Prayer expressly preserves "the proper exercise of prosecutorial discretion" as to any result. (Compl. ¶ 96.) Plaintiff challenges the *false legal predicate* on which the petition was denied — a categorical disclaimer of a mandatory statutory duty, not a discretionary judgment that the referral did not warrant action. A denial resting on a false statement of law is not an exercise of discretion; it is reviewable. *Cf. Heckler v. Chaney*, 470 U.S. 821, 832–33 & n.4 (1985) (presumption against reviewing agency non-enforcement does not extend to "a refusal by the agency to institute proceedings based solely on the belief that it lacks jurisdiction"); *Dunlop v. Bachowski*, 421 U.S. 560, 572–75 (1975) (Secretary's refusal to act held judicially reviewable).

III. Ex Parte Young Permits the Federal Claims, and Sovereign Immunity Does Not Bar Them.

Defendant is sued in his official capacity for prospective declaratory and injunctive relief. (Compl. ¶¶ 10, 12, 15.) The Eleventh Amendment does not bar such a suit. *Ex parte Young*, 209 U.S. 123, 155–56 (1908).

A. The Inquiry is Straightforward and is Satisfied Here.

Whether *Ex parte Young* applies turns on "a straightforward inquiry into whether [the] complaint alleges an ongoing violation of federal law and seeks relief properly characterized as prospective." *Verizon Md. Inc. v. Public Serv. Comm'n of Md.*, 535 U.S. 635, 645 (2002). The doctrine "has been focused on cases in which a violation of federal law by a state official is ongoing as opposed to cases in which federal law has been violated at one time or over a period of time in the past," and on relief that "directly ends the violation of federal law." *Papasan v. Allain*, 478 U.S. 265, 277–78 (1986). Both elements are met. The website disclaimer is *ongoing*: it "has persisted across multiple administrations," "constitutes an ongoing misrepresentation of Minnesota law to every citizen who visits the Attorney General's website," and stands as "ongoing official policy of the Office of the Attorney General, not a one-time error." (Compl. ¶¶ 23, 26.)⁴ The

⁴ The persistence is documented, not merely alleged: Exhibit B contains Internet Archive captures of the office's website under Defendant's predecessor, Attorney General Lori Swanson — the same "How Can We Help?" page bearing a substantively identical criminal-authority disclaimer, alongside the office's "About the Office" page. (Ex. B,

relief sought is *prospective*: correction of the ongoing false statement (Compl. ¶ 95), adjudication of the petition going forward free of the false predicate (¶ 96), and an injunction against future false denials (¶ 97).

B. Defendant Misstates the Relief.

Defendant argues that the relief is not prospective because Plaintiff "wants this Court to declare that the past statements of the AGO were misstatements of law." (Def. Mem. 10–11.) That mischaracterizes the Complaint. A declaration of the *present* meaning of a statute, coupled with an injunction against an *ongoing and future* practice, is prospective relief even though the challenged practice was first adopted in the past. The website disclaimer is maintained today; enjoining its continuation operates prospectively. And the reconsideration sought (Compl. ¶ 96) is not an order to prosecute anyone: it is adjudication of a pending petition going forward, free of a false legal premise, with "the proper exercise of prosecutorial discretion" expressly preserved — prospective process, not commanded outcome.

ECF Doc. 1-3 at 50, 52 (captures dated 2015 and 2014); Compl. ¶ 23.) The disclaimer predates Defendant's tenure: it is institutional policy, not a staff response to a single referral — maintained by the same administration whose amenability to suit under *Ex parte Young* the Eighth Circuit confirmed in *281 Care Committee*. See *infra* § III.C.

C. The "commence proceedings" Requirement is a Pre-Enforcement Gloss That Does Not Fit This Posture.

Defendant argues that he is not a proper *Ex parte Young* defendant because there is no allegation that he is "threatening" or "commencing" proceedings against Plaintiff. (Def. Mem. 10, citing *Minn. Chapter of Associated Builders & Contractors v. Ellison*, 153 F.4th 695, 698 (8th Cir. 2025).) *Associated Builders* does not help Defendant. That case was a *pre-enforcement* challenge to a state Act, in which the plaintiffs sought to enjoin enforcement and the officials had disavowed any "present intention to commence" enforcement proceedings. The requirement that the official "threaten and [be] about to commence proceedings" — drawn from *Ex parte Young* itself, 209 U.S. at 156–57 — addresses that posture, where the alleged injury *is* the threatened future enforcement against the plaintiff; the court accordingly analyzed the *imminence* of enforcement as to the Governor and the Commissioner. As to the Attorney General, the court observed that "all parties agree that the Attorney General has some connection with enforcement."

This action is not a pre-enforcement challenge. Plaintiff does not seek to enjoin the enforcement of any law against himself; he challenges Defendant's *ongoing* false disclaimer of authority and the denial of his petition. The injury is the maintained misrepresentation, not a threatened prosecution — so the imminence-of-enforcement inquiry is inapposite, and the governing test is the "straightforward inquiry" of *Verizon Maryland*: an ongoing violation of federal law and prospective relief. *See supra* § III.A. *Papasan* confirms it: the Court applied *Young* to a State's ongoing unequal distribution of school-land benefits — a posture involving no enforcement proceeding, threatened or

otherwise — holding the alleged violation "precisely the type of continuing violation for which a remedy may permissibly be fashioned under *Young*." 478 U.S. at 282.

Defendant's "connection with the enforcement" of Chapter 8 is conceded — in his memorandum here (Def. Mem. 10) and by all parties in *Associated Builders* itself — and it is the most direct possible: Defendant received the referral, denied it, and administers the statutes at issue. (Compl. ¶ 11.)

The Eighth Circuit has already rejected this office's argument in materially identical form. *281 Care Committee v. Arneson* — the case Defendant quotes for the Eleventh Amendment's "general prohibition" (Def. Mem. 10) — was a pre-enforcement challenge in which no proceeding had been threatened or commenced against anyone; then-Attorney General Swanson argued she was not a proper *Ex parte Young* defendant, and the court "reject[ed] Swanson's argument." 638 F.3d 621, 632 (8th Cir. 2011). The Attorney General need only have "some connection with the enforcement of the act" — a connection that "does not need to be primary authority to enforce the challenged law" — and the court found that standard met by, among other things, the Attorney General's authority, "upon request of the county attorney," to "become involved in a criminal prosecution" under Minn. Stat. § 8.01, and his duty under Minn. Stat. § 8.06 to act as attorney for state boards. *Id.* at 632–33. The very statutes Defendant now reads as negating his authority are the statutes the Eighth Circuit counted as his enforcement connection. His concession here — "some connection to the enforcement of the PCFA" (Def. Mem. 10) — concedes the only element his own authority requires.

D. Official Immunity Does Not Apply.

Defendant's invocation of state-law official immunity (Def. Mem. 9) is misplaced. Official immunity is a defense to *damages* liability. Plaintiff seeks no damages and asserts no individual-capacity claim. (Compl. ¶ 12.) The doctrine does not reach prospective declaratory and injunctive relief. In any event, a state-law immunity cannot defeat a federal claim under 42 U.S.C. § 1983. *Martinez v. California*, 444 U.S. 277, 284 n.8 (1980) (conduct "wrongful under 42 U.S.C. § 1983 . . . cannot be immunized by state law") (quoting *Hampton v. Chicago*, 484 F.2d 602, 607 (7th Cir. 1973)). Finally, the doctrine's own rationale is missing here. Official immunity exists so that fear of liability will not chill the exercise of official discretion — "the discretion afforded by his office," as Defendant puts it (Def. Mem. 9). But the February 26 letter's position is that the office lacks the authority in question. Immunity protects the exercise of a power, not the denial that the power exists.

IV. Pennhurst Does Not Bar the Federal Claims; the Statutory Question is Predicate to Them.

Defendant's strongest authority — relegated to a footnote (Def. Mem. 11 n.2) — is *Pennhurst State School & Hospital v. Halderman*, 465 U.S. 89 (1984). *Pennhurst* does not bar this action.

A. Pennhurst Preserves Ex Parte Young for Federal-Law Violations.

Pennhurst holds that the Eleventh Amendment bars a federal court from "instruct[ing] state officials on how to conform their conduct to *state* law." 465 U.S. at 106 (emphasis added). Its rationale is that *Ex parte Young* exists to vindicate "the

supreme authority of the United States," and "[t]here is no corresponding mandate to enforce state law." *Id.* at 109 n.17. The bar is therefore specific to relief grounded in state law; it leaves *Ex parte Young* fully intact for violations of *federal* law. Counts I and II arise under the First and Fourteenth Amendments, enforceable through 42 U.S.C. § 1983. *Pennhurst* does not touch them.

B. Pennhurst's Own Disposition is the Model.

Pennhurst did not dismiss the action. It reversed only the *state-law* basis for relief and remanded so the lower court could "consider to what extent, if any, the judgment may be sustained on these [federal constitutional] bases." 465 U.S. at 124–25. The same approach governs here: the federal claims sustain the relief, and any state-law theory that cannot independently support relief is subordinated to them.

C. Determining the Falsity of the Disclaimer is a Predicate Finding, Not Barred Relief.

A federal court determining whether Defendant's statement of Minnesota law was *false* — as an element of a federal Petition Clause and Equal Protection violation — does not "instruct[] state officials on how to conform their conduct to state law." It finds a predicate fact. Federal courts routinely interpret state law as a predicate to deciding federal questions, and *Pennhurst* expressly preserved that practice. *See* 465 U.S. at 119 n.21 ("Nothing in our decision is meant to cast doubt on the desirability of applying the *Siler* principle in cases where the federal court has jurisdiction to decide the state-law issues."). The relief Plaintiff seeks runs on the *federal* violation: the false statement

denied a federal petition right and effected selective enforcement in violation of equal protection.

D. The Predicate Falsity is Fixed by Operative Text and by Defendant's Own Concession.

The Court need not engage in any searching construction of Minnesota law, because the falsity of the categorical disclaimer is established by the operative text and by Defendant's own admissions alike. The text: Section 8.31 commands the Attorney General to "investigate" the enumerated statutes and to "cause the arrest and prosecution" of violators (Compl. ¶¶ 35–36), and Section 299C.061, Subdivision 4(c) preserves "the authority of the attorney general to investigate and enforce violations or suspected violations of Minnesota civil or criminal law" (Compl. ¶¶ 46–47). The admissions: Defendant concedes the AGO has "jurisdiction to investigate violations of PCFA" and "does investigate and prosecute Medicaid fraud." (Def. Mem. 8.) On this record the predicate finding — that the February 26 letter misstated Minnesota law — requires no contested interpretation; it follows from the statutes' plain terms and Defendant's concessions together.

E. Plaintiff Repositions Counts III and IV Accordingly.

To the extent Counts III and IV were framed as freestanding declarations of Minnesota statutory meaning and state-law ultra vires action, Plaintiff clarifies that the Section 8.31 and Section 8.32 falsity is asserted as a *predicate finding* supporting Counts I and II, and any declaratory relief is ancillary to those federal violations — not a command that Defendant conform to state law. That is construction, not amendment.

Each count incorporates the full factual allegations (Compl. ¶¶ 80, 85); Count IV rests its ultra vires theory on the same selective-application facts that state the equal-protection claim (¶ 88); and the Complaint itself pleads the accompanying injunctive relief as "ancillary" and correction-directed (¶ 89). A pro se complaint is read "in a way that permits the layperson's claim to be considered within the proper legal framework." *Stone*, 364 F.3d at 915. Plaintiff does not invoke the narrow ultra vires exception, which rests on "the officer's lack of delegated power" and for which "[a] claim of error in the exercise of that power is therefore not sufficient." *Pennhurst*, 465 U.S. at 101 n.11 (quoting *Larson v. Domestic & Foreign Commerce Corp.*, 337 U.S. 682, 690 (1949)). Plaintiff's position is the opposite — that the authority exists and was falsely denied — which supports the federal claims rather than a freestanding state-law decree. Should the Court conclude that any specific item of declaratory relief seeks barred state-law relief, the remedy is to trim that item, not to dismiss the federal claims, and leave to amend should be granted.

V. The Complaint States Federal Claims.

A. Count I States a Petition Clause Violation.

The First Amendment protects "the right of the people . . . to petition the Government for a redress of grievances," and filing a criminal referral with a law-enforcement office is a quintessential petition. *See Borough of Duryea v. Guarnieri*, 564 U.S. 379, 387 (2011) (the Petition Clause "protects the right of individuals to appeal to courts and other forums established by the government for resolution of legal disputes").

Plaintiff's petition was not denied through an exercise of discretion; it was foreclosed through a false statement of law that disclaimed a mandatory statutory duty. (Compl. ¶¶ 69–70.) That false statement chills the exercise of the petition right — both Plaintiff's and that of any citizen who accepts the disclaimer at face value. *Susan B. Anthony List*, 573 U.S. at 157–64.

Defendant responds that Plaintiff "does not have a constitutional right to have his referral investigated" (Def. Mem. 13) — but that is not the right asserted. The right asserted is to petition without having the petition foreclosed by a false statement of law, and to be free of the chilling effect such a statement produces. Defendant's further argument that the Complaint pleads no chill and no harm ignores the allegations that the documented criminal conduct continues unredressed and that Plaintiff was deterred and redirected to an agency that had already refused to act. (Compl. ¶¶ 64–66, 71.)⁵ And to the extent Defendant's borrowed standard requires more than negligence (Def. Mem. 12–13), the Complaint pleads knowledge: six days after the disclaimer issued, Defendant testified before Congress that his office prosecutes fraud "every single day." (Compl. ¶¶ 27–31.) To the extent Count I is framed as retaliation, the Petition Clause access-and-chill theory independently sustains it.

⁵ Defendant's Petition Clause discussion refers at one point to what "Scheffler must prove" (Def. Mem. 12) — a plaintiff who is not party to this action — indicating the section was adapted from another matter.

B. Count II States a Class-of-One Equal Protection Claim.

A class-of-one claim lies where a plaintiff is "intentionally treated differently from others similarly situated and . . . there is no rational basis for the difference in treatment." *Village of Willowbrook v. Olech*, 528 U.S. 562, 564 (2000). The Complaint alleges that Defendant deployed his Chapter 8 authority differently for the politically connected than for Plaintiff: individuals who later became Feeding Our Future defendants received a personal meeting and assurances of assistance ("Of course I'm here to help"), while Plaintiff — with no political connection — received a categorical false disclaimer of authority. (Compl. ¶¶ 54–56, 76–78.) The similarly situated class is persons seeking the Attorney General's exercise of Chapter 8 authority; the alleged differentiator is political connection. Defendant's objection that the Feeding Our Future defendants "did not send referrals" (Def. Mem. 14) addresses the form of the contact, not the operative comparison — how the office exercised the same statutory authority for favored versus disfavored persons.

Defendant's own explanation of the comparator fails on the pleadings: he attributes his "prosecutorial and investigatory powers regarding Medicaid fraud" to county consent (Def. Mem. 14), but the Complaint pleads — quoting Defendant's own testimony — that Feeding Our Future was "a child nutrition fraud prosecution, not a Medicaid case," producing fifty-seven convictions under the same Chapter 8 authority the February 26 letter disclaimed. (Compl. ¶ 29.) Nor do Defendant's added authorities raise the pleading bar: *Jennings v. City of Stillwater* arose on summary judgment, not the pleadings, 383 F.3d 1199, 1200 (10th Cir. 2004), and the district-court orders he cites addressed

protected-class discrimination claims by prisoners — his own parentheticals say so (Def. Mem. 14) — not class-of-one claims.

At the pleading stage, with all inferences drawn in Plaintiff's favor, the allegations suffice; to the extent the Court finds the comparator allegations require further specificity, leave to amend is the appropriate remedy.

C. Counts III and IV.

As set forth in Argument IV, the statutory falsity underlying Counts III and IV is predicate to the federal claims. To the extent these counts proceed as ancillary declaratory relief, they state a claim because the falsity of the disclaimer follows from Defendant's own concessions.

CONCLUSION

The motion should be denied. Defendant has conceded the authority his February 26 letter denied and has identified no statute that makes the disclaimer correct. The federal claims are properly before the Court under *Ex parte Young*; the standing allegations are concrete and pleaded element by element; and the duplicative-litigation doctrine does not reach a first action that has been dismissed and summarily affirmed without any merits adjudication, let alone justify dismissal with prejudice.

In the alternative, should the Court conclude that any disposition short of denial is warranted, Plaintiff respectfully requests that the Court (a) dismiss without prejudice rather than with prejudice — the *Kirchner I* dismissal, now summarily affirmed on its original Rule 8 basis, being no adjudication on the merits; and (b) in any event grant

leave to amend before any dismissal, consistent with *Michaelis v. Nebraska State Bar Ass'n*, 717 F.2d 437, 439 (8th Cir. 1983) — this Complaint having never been tested on the merits or afforded an opportunity to cure. Should the Court identify any defect it considers curable, Plaintiff stands ready to file a formal motion for leave to amend with a proposed amended pleading.

Respectfully submitted,

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